

National Credit Act 34 of 2005

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Purpose

To promote a fair, transparent, competitive, sustainable, responsible, efficient, effective and accessible credit market and industry, and to protect consumers.

Reckless credit (ss 80–84)

A credit agreement is reckless if, at the time it was made, the credit provider failed to conduct an assessment as required, or entered into the agreement despite the information available indicating the consumer did not understand the risks or would be over-indebted.

Debt review (ss 86–88)

Over-indebted consumers may apply to a debt counsellor. The Magistrate's Court may rearrange obligations. During debt review, credit providers are restricted from enforcement in specified ways.

Interest, fees and credit marketing are regulated. Credit bureaux must ensure accurate consumer credit information.

NOTE: Educational summary for SA research demo.

— End of curated extract. Verify official text before reliance. —